to prove them would be to instruct the Court in its own principles, to certify to the judge how equity itself operates. The exception could only have been inserted *ex majori cautelâ* that the extent of the enactment might not be left to implication. But why, it will be asked, are resulting trusts upon *conveyances* excepted, and not resulting * trusts [*195] upon *wills?* The only explanation that suggests itself is this: — The statute had spoken only of *declarations* or *creations* of trusts, and by a will no resulting trust is or can be *declared* or *created*. If lands be devised to A. and his heirs upon trust to pay the testator's debts, the resulting trust of the surplus is no new declaration or creation; the right construction is, that the testator has disposed of the legal estate to the devisee, and of part of the equitable in favour of creditors; but the residue of the equitable, though said to result, has in fact never been parted with, but descends upon the heir-at-law as part of the original inheritance. In *conveyances*, however, this is not equally the case; for if a purchase be taken in the name of a third person, a trust which had no previous existence arises upon the property in favour of the real purchaser; and so if a lease be renewed by a trustee, the equity which was annexed to the old term immediately fastens upon the new. Here, then, it is evident there is an actual *creation* of trust; and, to obviate all doubts as to the operation of the enactment, resulting trusts arising out of *conveyances* are expressly excepted.